

25STCV32087 25STCV32087

County: los-angeles

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Case Number: 25STCV32087 Hearing Date: July 17, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

LEVI

ESTATES, LLC, et al.,

vs.

KASSAHUN

NISA, et al.

Case No.:

25STCV32087

Hearing Date: July 17, 2026

Cross-Defendants Levi

Estates, LLC's and Eli Levi's unopposed demurrer to pro per Cross-Complainants

Iman El Gaddari's, Kassahun Nigusa's, Belaynesh Endalew's, and Elias Kassahun

Mingestu's (by and through GAL Iman El Gaddari) cross-complaint is sustained as

to the 3rd, 6th, 8th, 9th, 10th, 11th, 14th, 15th, and 16th causes of action is sustained with 20 days leave and overruled as to the 1st, 2nd, 4th, 5th, 7th, 12th, and 13th causes of action.

Cross-Defendants

Levi Estates, LLC ("Levi Estates") and Eli Levi ("Levi") (collectively, "Cross-Defendants") demur unopposed to pro per Cross-Complainants Iman El Gaddari's ("El Gaddari"), Kassahun Nigusa's ("Nigusa"), Belaynesh Endalew's ("Endalew"), and Eliyas Kassahun Mingestu's (by and through GAL El Gaddari)[1] ("Mingestu") (collectively "Cross-Complainants") cross-complaint ("XC"). (Notice of Demurrer, pg. 2; C.C.P. §430.10.)

Meet and Confer

Before filing a demurrer, the moving party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading and obviate the need for filing the demurrer. (C.C.P. §430.41, emphasis added.)

Cross-Defendants counsel declares that on or about February 16, 2026, he sent Cross-Complainants letters via mail and email requesting to meet and confer. (See Decl. of Gordon ¶2.) Cross-Defendants' counsel's declaration is in violation of C.C.P. §430.41(a) because he does not declare that he made and attempt to meet and confer in person, by telephone, or by video conference. Email writing is not "meeting and conferring" as contemplated by the statute; rather, it is merely corresponding. However, failure to sufficiently meet and confer is not grounds to overruled or sustain a demurrer. (C.C.P. §430.41(a)(4).) Therefore, the Court will consider Cross-Defendants' demurrer.

Background

Cross-Defendants/Plaintiffs

filed their Complaint on November 4, 2025.

On January 12, 2026, Cross-Complainants filed the operative XC against Cross-Defendants, alleging sixteen causes of action: (1) negligence [against Cross-Defendants]; (2) premises liability [against Cross-Defendants]; (3) negligent

infliction of emotional distress [against Cross-Defendants]; (4) breach of implied warranty of habitability [against Cross-Defendants]; (5) violation of Civil Code §1941.1 and Health & Safety Code §17920.3; (6) breach of contract lease and option to purchase [against Cross-Defendants]; (7) breach of the covenant of good faith and fair dealing [against Cross-Defendants]; (8) fraud (intentional misrepresentation, concealment, and promissory fraud including fraudulent UD) [against Cross-Defendants]; (9) constructive fraud/failure to disclose material defects [against Cross-Defendants]; (10) declaratory relief [against Cross-Defendants]; (11) specific performance option to purchase [against Cross-Defendants]; (12) alter ego/piercing the corporate veil [against Cross-Defendant Levi]; (13) punitive damages [against Cross-Defendants]; (14) negligent and intentional infliction of emotional distress [against Cross-Defendants]; (15) injunctive relief mold remediation [against Cross-Defendants]; and (16) specific performance alternative equitable relief [against Cross-Defendants].

Cross-Defendants

filed the instant demurrer on March 19, 2026.

As of the date of this hearing no opposition has been filed.

Summary of Demurrer

Cross-Defendants

demurs to each cause of action on the basis that Cross-Complainants fail to allege facts sufficient to allege causes of action. (Demurrer, pgs. 3-5; C.C.P. §430.10(e).)

Legal Standard

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Insurance Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hospital District

(1992) 2 Cal.4th 962, 967.)

Failure to State a Claim

Negligence & Premises Liability (1st & 2nd COAs)

“The elements of a cause of action for negligence are well established. They are ‘(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.’” (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.)

Cross-Complainants allege Cross-Defendants owed them a duty to maintain habitable and safe premises, breached that duty by failing to repair known defects, and the breach of that duty caused Cross-Complainants injury including respiratory illness, physical pain, miscarriage, and emotional distress. (See XC at PDF pg. 9.) Because Cross-Complainants allege a cause of action against Cross-Defendant Levi Estates, and alleges Levi Estates is an alter ego of Levi, Plaintiffs sufficiently allege a cause of action for negligence.

Accordingly, Cross-Defendants' demurrer to Cross-Complainants' 1st cause of action is overruled.

Negligent Infliction of Emotional Distress (3rd COA)

The doctrine of “negligent infliction of emotional distress” is not a separate tort or cause of action. It simply allows certain persons to recover damages for emotional distress only on a negligence cause of action even though they were not otherwise injured or harmed. (See Molien v. Kaiser Foundation Hospitals (1980) 27 Cal.3d 916, 928.)

“In the absence of physical injury or impact to the plaintiff himself, damages for emotional distress should be recoverable only if the plaintiff: (1) is closely related to the injury victim, (2) is present at the scene of the injury-producing event at the time it occurs and is then aware that it is causing injury to the victim and, (3) as a result suffers emotional distress beyond that which would be anticipated in a disinterested witness.” (Thing v. La Chusa (1989) 48 Cal.3d 644, 647.)

Cross-Complainants allege El Gaddari witnessed Mingestu screaming in pain as the child's skin blistered from the stove in February 2025. (XC at PDF pg. 13.) Cross-Complainants fail to allege the element of proximate causation by Cross-Defendants regarding Mingestu's injury and pain from the stove.

Cross-Complainants merely allege that Cross-Defendants had a legal duty to maintain the premises, but the duty as alleged has no proximate connection to the child's injury from the stove.

Accordingly, Cross-Defendants' demurrer to Cross-Complainants' 3rd cause of action is sustained with 20 days leave to amend.

Breach of Implied Warranty of Habitability (4th COA)

The elements of a cause of action for breach of the implied warranty of habitability "are the existence of a material defective condition affecting the premises' habitability, notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages." (Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1297.) The alleged defective condition must "affect the tenant's apartment or the common areas which he uses." (Hinson v. Delis (1972) 26 Cal.App.3d 62, 70.)

Cross-Complainants allege that Cross-Defendants allowed black mold, roof leaks, defective plumbing, rodent infestation, and an unsafe stove to persist for months. (XC at PDF pgs. 13-14.) Cross-Complainants allege that they repeatedly notified Cross-Defendants between December 2024 and May 2025, yet repairs were delayed or ignored. (XC at PDF pg. 14.) Cross-Complainants allege that the uninhabitable conditions caused respiratory problems, miscarriages, and emotional trauma, substantially depriving them of use and enjoyment of the premises. (XC at PDF pg. 14.) Cross-Complainants sufficiently allege a cause of action for breach of warranty of habitability.

Accordingly, Cross-Defendants' demurrer to Cross-Complainants' 4th cause of action is overruled.

Violation of
Civil Code §1941.1 and Health & Safety Code §17920.3 (5th COA)

Civil Code §1942.4 provides:

(a)

A landlord of a dwelling may not demand rent, collect rent, issue a notice of a rent increase, or issue a three-day notice to pay rent or quit pursuant to subdivision (2) of Section 1161 of the Code of Civil Procedure, if all of the following conditions exist prior to the landlord's demand or notice:

(1)

The dwelling substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling.

(2)

A public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions.

(3)

The conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. For purposes of this subdivision, service shall be complete at the time of deposit in the United States mail.

(4)

The conditions were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2.

(Civil Code §1942.4(a).)

Cross-Complainants allege that Cross-Defendants maintained substandard conditions at the Subject Property including water intrusion and black mold, leaking plumbing and unsanitary conditions caused by mold, rodent infestation and inadequate sanitation, and unsafe appliances. (XC at PDF pg. 14.) Cross-Complainants allege that despite having

the ability and duty to repair, Defendants failed to remedy the defective, unsanitary, and unsafe conditions, and continued to collect rent from Plaintiff in violation of Civil Code §1942.4, which prohibits landlords from demanding or collecting rent when a dwelling is known to be uninhabitable and cited or otherwise in violation of health and safety laws. (XC at PDF pg. 15.) Cross-Complainants sufficiently allege a cause of action for breach of warranty of habitability. Cross-Complainants sufficiently allege a cause of action for statutory violations of Civil Code §1941.1 and Health & Safety Code §17920.3, which are different causes of action from breach of the implied warranty of habitability.

Accordingly, Cross-Defendants' demurrer to Cross-Complainants' 5th cause of action is overruled.

Breach of Contract & Specific Performance (6th, 11th, 15th, & 16th COAs)

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damage to the plaintiff." (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.) In a real property transaction, the "material factors to be ascertained from the written contract are the seller, the buyer, the price to be paid, the time and manner of payment, and the property to be transferred, describing it so it may be identified." (Hennefer v. Butcher (1986) 182 Cal.App.3d 492, 501.)

To obtain specific performance after a breach of contract, a plaintiff must generally show: "(1) the inadequacy of his legal remedy; (2) an underlying contract that is both reasonable and supported by adequate consideration; (3) the existence of a mutuality of remedies; (4) contractual terms which are sufficiently definite to enable the court to know what it is to enforce; and (5) a substantial similarity of the requested performance to that promised in the contract. [Citations.]" (Real Estate Analytics, LLC v. Vallas (2008) 160 Cal.App.4th 463, 472, citations omitted.)

Cross-Complainants allege that on or about November 1, 2024, they entered into a one-year residential lease with Cross-Defendants for the premises located at 3341 Country Club Drive, Los Angeles, California, for \$9,000 per month. (XC, PDF pg. 5.) Cross-Complainants allege that the lease

included an option to purchase, contingent upon Cross-Defendants providing a written purchase and sale agreement, which they failed to provide. (XC, PDF pg. 5.)

“‘[A]n option based on consideration contemplates two separate [contracts], i.e., the option contract itself, which for something of value gives to the optionee the irrevocable right to buy under specified terms and conditions, and the mutually enforceable agreement to buy and sell into which the option ripens after it is exercised. Manifestly, then, an irrevocable option based on consideration is a contract....’ [Citation.] Conversely, an option without consideration is not binding on either party until exercised [citation]; until then, the option ‘is simply a continuing offer which may be revoked at any time.’ [Citation.] [Citation].” (Steiner v. Thexton (2010) 48 Cal.4th 411, 420.)

Cross-Complainants fail to allege contractual terms which are sufficiently definite to enable the court to know what it is to enforce for the option contract. Therefore, Cross-Complainants fail to state causes of action for breach of contract and specific performance.

Accordingly, Cross-Defendants’ demurrer to the 6th, 11th, 15th, and 16th causes of action is sustained with 20 days leave to amend.

Breach of the Covenant of Good Faith and Fair Dealing (7th COA)

“The covenant of good faith and fair dealing, implied by law in every contract, exists merely to prevent one contracting party from unfairly frustrating the other party’s right to receive the benefits of the agreement actually made. The covenant thus cannot ‘be endowed with an existence independent of its contractual underpinnings.’ It cannot impose substantive duties or limits on the contracting parties beyond those incorporated in the specific terms of their agreement.” (Guz v. Bechtel National, Inc. (2000) 24 Cal.4th 317, 349-350, internal citations omitted.)

Cross-Complainants allege Cross-Defendants acted in bad faith by refusing to provide the PSA for the purchase option, ignoring numerous habitability complaints, including mold, leaks, and rodent infestation, and filing a fraudulent UD to threaten Cross-Complainants. (XC, PDF pg. 17.) Cross-Complainants sufficiently allege a cause of action on the basis of ignoring numerous habitability complaints, including mold, leaks, and rodent infestation.

Accordingly, Cross-Defendant's demurrer to the 7th cause of action is overruled.

Fraud

(Intentional Misrepresentation, Concealment, Promissory Fraud) (8th COA)

"The elements of fraud that will give rise to a tort action for deceit are: (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974, internal quotation marks omitted.)

It is well established that fraud must be plead with specificity. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645 ["this particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered"].)

Fraudulent concealment and fraudulent misrepresentation are two distinctly different causes of action. "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact." (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.)

Cross-Complainants allege Cross-Defendants

knowingly misrepresented material facts with intent to deceive, including that:

(1) The Subject Property was habitable; (2) The purchase option would be honored; and (3) Rent had not been paid (UD filing). (XC, PDF pg. 17.)

Cross-Complainants allege that

Cross-Defendants concealed black mold, water intrusion, defective plumbing, and unsafe appliances. (XC, PDF pg. 17.)

Cross-Complainants fail to allege fraud with specificity showing

how, when, where, to whom, and by what means the representations were tendered. Additionally, Plaintiffs fail to allege they

were unaware of a specific fact and would have acted differently if the concealed or suppressed fact was known.

Accordingly, Cross-Defendants' demurrer to the 8th cause of action is sustained with 20 days leave to amend.

Constructive Fraud (9th COA)

Constructive fraud allows conduct insufficient to constitute actual fraud to be treated as such where the parties stand in a fiduciary relationship. The difference between actual fraud and constructive fraud is primarily in the type of conduct which may be treated as fraudulent, such as a failure to disclose material facts within the knowledge of the fiduciary. Further, the reliance element is relaxed in constructive fraud to the extent we may presume reasonable reliance upon the misrepresentation or nondisclosure of the fiduciary, absent direct evidence of a lack of reliance. (Estate of Gump (1991) 1 Cal.App.4th 582, 601.)

Cross-Complainants allege Cross-Defendants owed fiduciary-like duties to disclose known latent defects and they intentionally failed to provide required mold disclosures, conceal water intrusion, and misrepresented habitability.

(XC at PDF pg. 18.)

Cross-Complainants allege they relied on these omissions, resulting in injuries and property loss. (XC at PDF pg. 18.)

Cross-Complainants fail to allege that Cross-Defendants owed them a fiduciary duty.

Accordingly, Cross-Defendants' demurrer to the 9th cause of action is sustained with 20 days leave to amend.

Declaratory Relief (10th COA)

A cause of action for declaratory relief requires the following elements: (1) person interested under a written instrument or a contract; or (2) a declaration of his or her rights or duties (a) with respect to another or (b) in respect to, in, over or upon property; and (3) an actual controversy. (C.C.P. §1060.)

Cross-Complainants allege that an actual controversy exists regarding their rights under the lease and purchase option, and whether Cross-Defendants may lawfully claim nonpayment or refuse performance. (XC at PDF pg. 18.) Cross-Complainants seek a declaration confirming their right to exercise the option, enforce the PSA, and occupy the property free from false eviction threats under C.C.P. §1060. (XC at PDF pg. 18.)

Cross-Complainants sufficiently allege a cause of action for declaratory relief regarding their rights under the lease, but not under the purchase option.

Cross-Complainants' cause of action seeks a determination that they have a right to exercise the option and enforce the PSA, which this Court determined does not contain contractual terms which are sufficiently definite to enable the court to know what it is to enforce for the option contract.

Accordingly, Cross-Defendants' demurrer to the 10th cause of action is sustained with 20 days leave to amend.

Alter Ego & Punitive Damages (12th & 13th COAs)

A motion to strike, not a general demurrer, is the procedure to attack an improper claim for punitive damages or other remedy demanded in the complaint. A general demurrer challenges only the sufficiency of the cause of action pleaded, and must be overruled if any valid cause of action is pleaded; a demand for improper relief does not vitiate an otherwise valid cause of action. (Venice Town Council, Inc. v. City of Los Angeles (1996) 47 Cal.App.4th 1547, 1561-1562.)

Accordingly, Cross-Defendants' demurrer to the 12th and 13th causes of action is overruled.

Negligent Infliction of Emotional Distress (14th COA)

Cross-Complainants assert a duplicative cause of action for negligent infliction of emotional distress, which is subject to demurrer. (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290 as modified on denial of reh'g (July 14, 2016).)

Accordingly, Cross-Defendants' demurrer to the 14th cause of action is sustained with 20 days leave to amend.

Conclusion

Cross-Defendants' demurrer to Cross-Complainants' 1st, 2nd, 4th, 5th, 7th, 12th, and 13th causes of action is overruled. The demurrer is sustained with 20 days leave to amend as to the 3rd, 6th, 8th, 9th, 10th, 11th, 14th, 15th, and 16th causes of action is sustained with 20 days leave. Cross-complainants are requested that if they elect to file an amended Cross-complaint, they should identify themselves as Cross-complainants (not plaintiffs) and Levi Estates, LLC and Eli Levi as Cross-defendants (not defendants).

Moving Party to give notice.

Dated:

July _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court

[1] The Court notes that a Guardian Ad Litem ("GAL") to a minor must be represented by counsel. (J.W.

v. Superior Court (1993) 17 Cal.App.4th 958, 966 ["a guardian ad litem who appears in court and acts as would an attorney on behalf of the ward is practicing law on behalf of the ward"].)

Currently, the alleged GAL is in pro per and has not moved for this Court to appoint El Gaddari as Mingestu's GAL. (See C.C.P. §372 [explaining the requirements for application to be appointed minor's GAL].) For Cross-Complainant Mingestu's interests to be asserted in this case, a GAL must be appointed by this Court, and the GAL must be represented by counsel.